

24STCV05423 24STCV05423

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-23

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Case Number: 24STCV05423 Hearing Date: June 23, 2026 Dept: 529

DANA HUFSTETLER VS CLEAN ENERGY FUELS CORP, ET AL.

PLAINTIFF'S MOTION TO CONFIRM AND CORRECT CONTRACTUAL ARBITRATION

AWARD

Date of Hearing: June

23, 2026 Trial

Date: None set

Department: 529 Case

No.: 24STCV05423

Moving Party: Plaintiff/Petitioner

Dana Hufstetler

Responding Party: Defendant/Respondent

Clean Energy Fuels Corp.

BACKGROUND

On March 4, 2024, Plaintiff Dana Hufstetler filed a complaint

against Clean Energy Fuels Corp., Oscar Sanchez Jr., and Christopher Gate for failure to pay wages and overtime, failure to pay prevailing wages on public works, failure to provide or otherwise compensate for missed meal and rest breaks, recovery under public works bonds and unfair competition in violation of California Business and Professions Code §§17200.

[TENTATIVE]

RULING

Petition to Confirm Arbitration Award is GRANTED.

DISCUSSION

Plaintiff/Petitioner Dana Hufstetler petitions this court for an Order confirming the JAMS Arbitration Award rendered in his favor by Justice Richard D. Aldrich (Ret.), consisting of the Interim Award entered January 14, 2026 and the Award on Attorneys' Fees and Costs / Final Award entered March 4, 2026 in JAMS Reference No. 5220006499 (collectively, the "Final Award"), and for entry of judgment against Defendant/Respondent Clean Energy Fuels Corp. ("Clean Energy" or "Respondent") in conformance with the Final Award.

Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (CCP § 1285.) "An arbitration award is not directly enforceable; until confirmed or vacated by court proceedings, the award is no more than a contract between

the parties to the arbitration.” (Cinel v. Christopher (2012)

203 Cal.App.4th 759, 765.) Courts look to the statutory scheme

to determine whether an arbitration award may be

confirmed, vacated or corrected. (See id.) “If

a petition or response under this chapter is duly served and filed, the court

shall confirm the award as made, whether rendered in this state or another

state, unless in accordance with this chapter it corrects the award and

confirms it as corrected, vacates the award or dismisses the

proceeding.” (Code Civ. Proc. § 1286.) “If an award is

confirmed, judgment shall be entered in conformity therewith.” (CCP § 1287.4.) A

party may seek a court judgment confirming an arbitration award by filing and

serving a petition no more than four years after the award is

served.” (CCP § 1288.)

In the instant matter, the petition complies with Code

of Civil Procedure section 1285.4. The arbitration award was entered by Justice

Richard D. Aldrich (Ret.), JAMS Arbitrator on March 4, 2026. (Donahoo Decl.

¶19.) This petition was filed May 27, 2026. As a result, the petition

is timely. Moreover, a copy of the arbitration award and written

opinion is attached. The arbitrator found in favor of Dana Hufstetler

and awarded \$281,895.82 in attorneys’ fees and \$11,058.46 in costs.

Clean Energy Fuels Corp. submitted a Notice of Non-Opposition.

Clean Energy Fuels Corp. submitted the Notice to advise the court that the

award was fully satisfied before the filing of the Petition and requests that

the court acknowledge that Clean Energy satisfied the award, including payment

of interest through April 2, 2026, prior to entry of judgment.

Accordingly, the Petition to Confirm Arbitration Award is

GRANTED.